

ATTACHMENT 4

Pre-proposal conference – Multi Purpose Room

U.S. Embassy Libreville

Date: April 14, 2025

Minutes from Pre-Proposal Conference of April 8, 2025, at 10:00.

Definition

Government: Government of the United States of America

COR: Contracting Officer Representative

CO: Contracting Officer

GOVERNMENT: The Government of the United States Embassy of America

OBO: Overseas Building Operations

APOSHO: Assistant Post Occupational Safety Health Officer.

Introduction

A Pre-Proposal Conference was held on April 8, 2025, at 10:00.

Attendance:

Companies: three different companies participated.

Embassy Staff:

Imelda Ntsame Ondo - Assistant Post Occupational Safety Health Officer (COR).

Nathaniel Rudy - General Services Officer (CO).

Judith Abourou - Contract assistant.

Discussion of the Solicitation Package

The following sections of the solicitation were highlighted:

The offer

Vendors were reminded that offers shall be in two (2) distinct volumes and include:

1. Section 1 Pricing (SF-1449, pricing tables in Section 1 and DBA Insurance premium cost).
2. Section 3, Technical Proposal criteria (Technical, SAM Registration, Section 5, Representations and Certifications)

Vendors were also instructed to provide a complete list of references which shall include dates of contracts, places of performance, value of contracts, contact names, telephone numbers and email addresses).

(Refer to solicitation Section 3 for more details).

Emphasis was also placed on all legal documents which have to be part of their offer (refer to section 3).

Vendors were encouraged to provide proper offers with sufficient details to allow a good evaluation of the bids. It was also explained that offers shall demonstrate that vendors understand our requirement and response shall be in line with the terms of our solicitation.

Payment of Invoice:

For payment, invoices shall follow the guidance provided in DOSAR 652.232-70 (on page 49).

The Government explained that this is an IDIQ contract (Indefinite Delivery Indefinite Quantity) type of contract. Orders are confirmed via Task Orders and invoices shall indicate the specific

Task Order. That is, the number of points provided in the solicitation, at this point, are estimated quantities.

Scope of Work

The Contract assistant did a thorough review of the scope of work in Section 1 and Attachment 1 and vendors could ask questions for clarification.

The Scope of Work shall be read alongside the Drinking water program (Attachment 2).

Solicitation & Contract clauses

Offerors were asked to pay special attention to the following clauses:

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Aug 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

52.228-3 Worker's compensation Insurance (JUL 2014)

52.228-5 Insurance-work on a government installation (JAN 1997)

52.229-6 Foreign fixed price contracts (FEB 2013)

52.217-8 Option to extend services (NOV 1999)

52.217-9 Option to Extend the Term of the Contract (MAR 2000)

52.232-19 Availability of funds for the next fiscal year (APR 1984)

652.204-70 Department of State personal identification card issuance (MAY 2011)

Offerors were advised that this new solicitation is now impacted by the new Executive Orders 14128, 14208, 14148, 11246 and 14173.

As a result, EO 11246, Equal Employment Opportunity, will no longer be enforced.

Therefore, contractors and their subcontractors will not be held accountable for applying the FAR clauses or provisions outlined in FAR subpart 22.8 - Equal Employment Opportunity or the associated provisions and clauses prescribed at FAR 22.810.

Also, offerors are now required to sign the "Certification regarding Compliance with Applicable Federal Anti-discrimination Law".

SAM Registration

The Government reinforced the importance of starting the registration process in SAM right away, since this is mandatory for the current contract, and prospective contractors shall be registered in the SAM database at time of submittal of an offer (FAR 4.1102).

Offerors were also informed that the System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services.

Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

During the conference, a prospective offeror made a comment regarding the difficulty of completing the registration for local suppliers. The Government acknowledges that the process can be burdensome, and this is in fact the reason why all prospective offerors are encouraged to start immediately the registration process.

Furthermore, the Procurement office is willing to assist potential vendors by providing supplemental guidance documents which are normally available at www.sam.gov (refer to the last part of the Question & Answer section in this document).

Evaluation factors

The evaluation factors were presented to the vendors (Compliance review, technical acceptability, price analysis, determination of responsibility, SAM registration and Defense Base Act Insurance).

Questions:

The attached questions were asked during the conference:

Vendors were informed that they are allowed to ask further questions up until Friday April 11, 2025, at 1200, local time.

Conclusion

The conference concluded and attendees were thanked for their presence and expression of interest in serving the U.S. Government. The meeting was adjourned at 12:25.

Enclosure: Questions and Answers (1 to 8).

Questions & Answers

1 – During the presentation, you mentioned the list of legal documentations to be provided by the offeror, please note that our company holds a special authorization (Agrément PME). As such, some of the documents listed are not required, is this, okay?

Answer:

Each offeror is required to provide legal documentation that shows that they are authorized to provide laboratory testing services in Gabon. You are advised to ensure that you do provide all the legal documents that should accompany this special authorization. Indeed, given different circumstances, the documents may not be exactly the same as listed in the solicitation requirement. The burden is on you to prove that the documents that you are submitting or not submitting are in line with local regulations.

2 – As a Government Agency, the documents also differ from the actual list provided?

Answer:

Each offeror is required to provide legal documentation that shows that they are authorized to provide laboratory testing services in Gabon. You are advised to ensure that you do provide all the legal documents that should accompany your Government Laboratory Agency. Indeed, given different circumstances, the documents may not be exactly the same as listed in the solicitation requirement. The burden is on you to prove that the documents that you are submitting or not submitting are in line with local regulations.

3- We are not familiar with the sites where we are supposed to run tests, how do we go about it??

Answer:

Once the Contract is awarded, we will conduct a preliminary site visit. Please note that the important information is that tests will be conducted in all Government leased or owned residences. Water is from the SEEG, and samples will be taken from various points:

- distillers,
- nano filters,
- water from the kitchen tap, and
- bathrooms.

Plumbing fixtures are in good condition. There are occasional circumstances where we have to pay for delivery of water, as a result of city shortages. All residences are occupied so the water is not still.

4- In your section 1, Pricing, we would like to have more information on this. You have listed 31 companies and 2 tests to be ran. On the other hand, in the list of residences, there are on average 5 points where samples should be collected. We believe that if we were to make an offer, as is, this would not clearly represent the actual costs? Kindly could you confirm if it is okay to provide an offer, taking into account all the different sampling points, for a more accurate estimated cost?

Answer:

The Government agrees with this statement and encourages contractors to provide the most accurate estimate, which would consider both the number of tests and the sampling points. Accordingly, the quantities in the pricing tables will be adjusted in an amendment to the solicitation.

5– Will waste water be tested as well, under this contract?

Answer:

No, this contract only covers testing potable water. We are essentially concerned with water coming from distillers, nano filters, water from the kitchen tap, and from bathrooms.

6– Kindly, could you confirm how you came about the number of days for reporting? In fact, we believe that not all testing will meet the 7-day timeframe. If we find germs, then supplemental testing will be run to determine the exact germ, so it might go beyond that deadline. Please advise.

Answer:

Please note that this is an example of when good and effective communication should occur between the contractor and the Government. Communication is the key and obviously, this will be dealt with on a case by case basis.

7– Your scope of work states water and sediment, are we also testing sediment?

Answer:

Please note that the word sediment will be deleted from the solicitation. You are only required to test potable water.

8– Could you confirm the exact number of days after which you expect to receive reports. In some instances, it is listed as 5 days and in other sections it states 7 days.

The Government will correct the solicitation to read 7 days for all tests.

No questions were asked about SAM registration, but the Government would like to share again the steps to be followed for that purpose.

Step 1 – Get an NCAGE Code

- An NCAGE is required for all foreign entities otherwise the registration will be considered incomplete.
- The vendor can submit their request for an NCAGE Code by going to the NATO Support Activity (NSPA) NCAGE Request Tool at <https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>
- After the vendor requests the NCAGE code, the vendor will have to search for BINCS to see if their information has been received.
- Some countries may take several weeks for the information to be sent to BINCS. We noted that for Gabon, it takes 48 to 72 hours.
- Once the information has been received by BINCS the vendor can now start the registration process for SAM
- **Please note that the legal business name and physical address MUST be exactly the same in all systems: NCAGE and SAM.**
- **The address has to be a street address containing no special characters.**

Step 2 – Get a Unique Entity Identification Number (UEI)

- Before a company can register with SAM, the vendor must also get a UEI Number. Please visit www.sam.gov for that purpose.

You will be required to provide legal business documents in both original and English versions (certified translation).

Step 3 – Register in SAM

- To start your registration, log back to www.sam.gov .
- You need to have all the necessary information regarding your company (number of employees, your average income, key contact for SAM, etc....).
- SAM imports the NCAGE information and compares it. If the information is not exactly the same, the vendor will not be able to register in SAM.

The Embassy is not responsible for any information or processing by the General Services Administration for SAM registration. The steps provided above are for informational and administrative purposes only. Only the SAM.gov website and GSA can provide the precise instructions, requirements, and approvals for SAM registration.”

Attached to these Minutes of Meeting, we are also adding the Entity registration checklist for further information.